

Minister may be made; and the Minister shall consider any representations which may be duly made.

Definitions
and saving.

5. For the purposes of this Act the expression "statutory provisions" includes the provisions of an order having the force of an Act:

The expression "undertakers" includes the owners or other persons for the time being entitled to levy tolls, rates, dues, and charges in respect of any port, harbour, dock, or pier, and in relation to any port, harbour, dock, or pier where such person is the Minister of Transport, includes the Minister.

Short title
and duration.

6.—(1) This Act may be cited as the Harbours, Docks, and Piers (Temporary Increase of Charges) Act, 1920.

(2) This Act shall have effect until the fifteenth day of February nineteen hundred and twenty-three.

CHAPTER 22.

An Act to reduce temporarily the rates payable in respect of Ecclesiastical Tithe Rentcharge.

[4th August 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Partial relief
of ecclesiastical
tithe rentcharge
from rates.

1.—(1) The owner of tithe rentcharge attached to an ecclesiastical corporation or benefice shall not be liable to pay, in respect of any rate made on or after the first day of April nineteen hundred and twenty, and before the first day of January nineteen hundred and twenty-six, which is assessed on him as owner of that tithe rentcharge, an amount in excess of such an amount as would have been payable by him if the rate had been made at such amount in the pound as is equal to the amount in the pound (to be ascertained in accordance with the rules set out in the Schedule to this Act) at which the corresponding rate was made in the year nineteen hundred and eighteen, and the excess shall be deemed to be irrecoverable.

(2) Where the owner of tithe rentcharge attached to a benefice, before payment of the amount payable by him in respect of any such rate as aforesaid, produces to the collector of the rate a statutory declaration made by him in a form prescribed by the Minister of Health showing that the total income arising from the benefice for the year ending on the fifth day of April preceding the date at which the rate was made, estimated in accordance with the provisions of the Income Tax Acts, did not exceed three hundred pounds, or, if it exceeded that sum, did not exceed

five hundred pounds, the owner shall be entitled to such relief or abatement in respect of such rate as follows, that is to say, if the total income arising from the benefice did not exceed three hundred pounds the owner shall not be liable to any payment in respect of the rate, and if it exceeded that sum, but did not exceed five hundred pounds the owner shall be allowed an abatement of one-half of the amount which would otherwise be payable by him in respect of the rate having regard to the preceding provisions; and the amount of any relief or abatement in respect of a rate given by this section shall be deemed to be irrecoverable.

A statutory declaration made for the purpose of this section shall be exempt from stamp duty.

(3) Nothing in this Act shall affect the allowance to be made in respect of rates in the assessment of tithe rentcharge for any rate or tax.

(4) Any amount paid by the owner of tithe rentcharge in respect of any rate to which this Act applies in excess of the amount which he is by virtue of this Act liable to pay shall be recoverable on demand made within six months after the passing of this Act as a debt due to him by the collector of the rate, and such amount shall be so recoverable notwithstanding that the statutory declaration required by this Act to entitle the owner to exemption or relief was not produced to the collector of the rate before payment of the rate if such declaration is so produced on or before the demand for repayment.

(5) In this Act the expression "ecclesiastical corporation" has the same meaning as in the *Episcopal and Capitular Estates Act, 1851*; the expressions "benefice" and "owner of tithe rentcharge" and "tithe rentcharge" have the same meanings as in the *Tithe Rentcharge (Rates) Act, 1899*; and the expression "rate" means a rate the proceeds of which are applicable to public local purposes and which is leviable on the basis of an assessment in respect of the yearly value of property. 14 & 15 Vict.
c. 104.
62 & 63 Vict.
c. 17.

2. This Act may be cited as the *Ecclesiastical Tithe Rent-charge (Rates) Act, 1920*. Short title.

SCHEDULE.

RULES FOR DETERMINING AMOUNT IN THE POUND OF CORRESPONDING RATE.

Section 1.

(1) Where a rate (hereinafter referred to as "a current rate") is made in respect of any yearly, half-yearly, or other period, and a corresponding rate in the year nineteen hundred and eighteen (hereinafter referred to as "the standard rate") was made in respect of the

like period, the amount in the pound of the standard rate shall, for the purposes of this Act, be treated as the amount in the pound at which the corresponding rate was made.

(2) Where a current rate is made in respect of any yearly, half-yearly, or other period, and the standard rate was made in respect of a shorter or longer period, then—

(a) in the former case, the aggregate of the amounts in the pound of the standard rates made in respect of the periods covered by the period in respect of which the current rate is made shall, for the purposes of this Act, be treated as the rate in the pound at which the corresponding rate was made;

(b) in the latter case, such part of the amount in the pound of the standard rate as bears to the whole of that amount the same proportion as the period in respect of which the current rate is made bears to the period in respect of which the standard rate was made shall, for the purposes of this Act, be treated as the rate in the pound at which the corresponding rate was made.

(3) If by reason of the constitution or extension of a borough or urban district, the consolidation of rates, or other change of circumstances any question arises as to the rate to which a current rate corresponds, the question shall be determined in accordance with any general or special regulations which the Minister of Health may make for the purpose; and such regulations may provide for the manner in which, in cases to which the regulations apply, the rate in the pound of the corresponding rate is to be calculated, and for a rate being treated as two or more rates according to the purposes for which it was levied, and for making adjustments when the proportion of the rateable value on which tithe rentcharge is assessed to a current rate differs from the proportion on which it was assessed to the standard rate, or when any other circumstances render such adjustment necessary.

(4) Where in the year nineteen hundred and eighteen no rate was made which corresponds to or under regulations made as aforesaid is deemed to correspond to a current rate, the amount in the pound at which the corresponding rate was made in that year shall, for the purposes of this Act, be treated as nil.

CHAPTER 23.

An Act to amend the War Pensions Acts, 1915 to 1919,
and the Ministry of Pensions Act, 1916.

[4th August 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) The powers and duties transferred from the Admiralty, the Commissioners of the Royal Hospital for Soldiers at Chelsea, the Army Council, and the Secretary of State for War to the